



December 29, 2023

Via Electronic Mail

Dr. Kristen Monaco
Director, Bureau of Trade Analysis
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
kmonaco@fmc.gov

Re: Request for Special Permission, Red Sea Charge

Dear Dr. Monaco,

American President Lines, LLC ("APL") (FMC Org. No. 000240) respectfully requests special permission pursuant to 46 C.F.R. § 520.14 to implement an emergency Red Sea Charge on less than thirty (30) days' notice. The reasons for this request are set forth below.

APL provides ocean transportation services to various locations worldwide, including the Middle East. The recent attacks against commercial vessels transiting the Red Sea raise significant concerns for the safety of vessels, crew and cargo. In order to ensure the safety of crew and vessels, as well as to safeguard cargo, containerhips scheduled to pass through the Red Sea have been ordered to suspend operations and reach safe locations. An alternate solution has been identified for customers who continue to need cargo delivered to or loaded from ports in the Red Sea region. Specifically, a feeder vessel solution was identified, which will include port calls in Jeddah, Port of Neom, Djibouti, Aden, Hodeidah, Port Sudan, Massawa, Berbera, Aqaba and Sokhna. While APL is able to offer this solution for customers, it comes at an increase in costs – which APL will incur as pass through charges for APL cargo loaded onboard relevant feeder vessels operating in the high-risk Red Sea region.

Given this sudden increase in costs, APL has published a new Red Sea Charge in order to recover these costs from customers who choose to ship cargo to or from Red Sea ports. The current effective date for this new Red Sea Charge is scheduled for January 28th. See Exhibit #1 hereto. However, unless the effective date of this new surcharge is advanced, APL will be unable to begin recovering the current increased cost incurred due to the implementation of the feeder service. Accordingly, APL respectfully requests special permission to advance the effective date of the Red Sea Charge to the earliest possible date.

The filing fee for this special permission request was paid electronically. The relevant Pay.gov tracking ID is 27AJ49DR and the Agency Tracking ID is 76591302742.

CMA CGM
GROUP

American President Lines, LLC – 1515 N. Courthouse Rd. – Suite 700 – Arlington, VA – 22201 – Tel: 202 496 2480



Your consideration of this request is greatly appreciated. Please do not hesitate to contact the undersigned should you have any questions or requests for further information. Thank you.

Sincerely,

American President Lines, LLC

Patricia O'Neill

Patricia O'Neill
General Counsel

Encls.



EXHIBIT 1

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Sub Rule Details Of - 157

Tariff Type	APLU028								
Rule Number	002								
Rule Title	APPLICATION OF RATES AND CHARGES								

Rule Number	Sub Rule Num...	Sub Rule Title	File Date	Effective Date	Thru Date	Expiry Date	Amendment C...	Status	Special Case
002	157	RED SEA SURCHARGE	2023-12-29	2024-01-28		9999-12-31	1A	A	

Description

RED SEA SURCHARGE

Carrier has implemented a Red Sea Surcharge (FRT41) for all ports of load/discharge located within the Red Sea, due to the on-going safety concerns in the area. The charge will apply to all ports of load/discharge listed below:

Jeddah
Port of Neom
Djibouti
Aden
Hodeidah
Port Sudan
Massawa
Berbera
Aqaba
Sokhna

A charge of \$1,575 per TEU or \$2,700 per FEU will apply to all tariff and service contracts for all dry commodities.

A charge of \$3000 per container will apply to all tariff and service contracts for all reefers and special equipment.



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Sub Rule Details Of - 133

Tariff Type	APLU029
Rule Number	002
Rule Title	APPLICATION OF RATES AND CHARGES

Rule Number	Sub Rule Num...	Sub Rule Title	File Date	Effective Date	Thru Date	Expiry Date	Amendment C...	Status	Special Case
002	133	RED SEA SURCHARGE	2023-12-29	2024-01-28		9999-12-31	IA	A	

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